

**IN THE WESTERN CAPE DIVISION OF THE HIGH COURT OF SOUTH AFRICA
(CAPE TOWN)**

ANNEXURE INDEX AND DIVIDER TABS

Regulatory Evidence Bundle

In the matter between:

WILBUR WILLIAM MATTHEE

Complainant / Applicant

and

MEDSCHEME (a division of AfroCentric Health)

Respondent

Annexures A through T

20 Annexures | Commissioned: 23 December 2025

CONFIDENTIAL — PROTECTED BY LEGAL PRIVILEGE

MASTER ANNEXURE INDEX

This index lists all twenty annexures comprising the Regulatory Evidence Bundle filed in the matter of Wilbur William Matthee v Medscheme (a division of AfroCentric Health). Each annexure is followed by a formal divider tab containing a complete description, metadata, witnesses, statutory basis, and evidentiary value.

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Ann. A	Chronology of Key Events	Timeline Evidence	pp. 173–177	High
Ann. B	Discrimination Evidence — the 'Wilma' Incident	Discrimination / Gender Identity Harassment	pp. 178–178 (original documents follow)	High
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Ann. T	Reputational Harm Evidence	Dignity Harm / Reputational Damage	p. 258	High

Each of the annexures listed above is preceded in this document by a formal divider tab. The divider tab sets out: the annexure reference; title; document category; pages

in the original bundle; relevant witnesses and sources; statutory basis; status; and a detailed description of the documents contained.

ANNEXURE A

CHRONOLOGY OF KEY EVENTS

Annexure Reference:	Annexure A
Title:	Chronology of Key Events
Document Category:	Timeline Evidence
Pages (Original Bundle):	pp. 173–177
Witnesses / Sources:	All individuals identified in Witness List (Section 8.2)
Statutory Basis:	PDA s1; LRA s186(1)(e); EEA s6; BCEA s34(2)
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

A structured, date-ordered record of all material events from 1 May 2024 to the date of submission. Covers: initial period (May 2024); early psychosocial risk indicators emerging (June–August 2024); retaliatory behaviour beginning (November–December 2024); documented threat by manager (6 March 2025); first protected disclosure to Senior Manager Mapule Mashele (May 2025); retaliation and non-action (June–July 2025); the 'Wilma' gender identity discrimination incident (September 2025); HR whitewash of discrimination as 'typo' (October 2025); formal grievance submission and 30+ days of institutional silence (November 2025); CCMA referral and retaliatory affidavit (December 2025); and commissioning of this bundle (23 December 2025).

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

ANNEXURE B

DISCRIMINATION EVIDENCE — THE 'WILMA' INCIDENT

Annexure Reference:	Annexure B
Title:	Discrimination Evidence — the 'Wilma' Incident
Document Category:	Discrimination / Gender Identity Harassment
Pages (Original Bundle):	pp. 178–178 (original documents follow)
Witnesses / Sources:	Team members present; Mary-Ann Jones (perpetrator); Ntabiseng (Operational Manager); Mapule Mashele (Senior Manager)
Statutory Basis:	EEA s6(1) — unfair discrimination on grounds of sexual orientation / gender expression; EEA s6(3) — harassment
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

Documentary evidence of the gender identity harassment incident in which the Complainant was publicly referred to as 'Wilma' — a feminised version of his name — in a team-wide communication. Contents include: the original communication containing the feminised reference; screenshots of the communication; emails reporting the incident to management, HR, and the union; Operational Manager Ntabiseng's response directing the perpetrator to provide feedback; evidence of the sham investigation conducted by Senior Manager Mashele; the outcome dismissing the incident as a 'typo' with no corrective action; and contextual notes establishing the impact on the Complainant as a gay man and the subsequent punitive treatment.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

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ANNEXURE C

RETALIATION EVIDENCE — DOUBLED UNPAID LEAVE

Annexure Reference:	Annexure C
Title:	Retaliation Evidence — Doubled Unpaid Leave
Document Category:	Retaliation / Occupational Detriment
Pages (Original Bundle):	pp. 179–186
Witnesses / Sources:	Mary-Ann Jones (Team Leader); Mapule Mashele (Senior Manager); HR Business Partner
Statutory Basis:	PDA s1 — occupational detriment; LRA s5 — protection of rights; EEA s6(4) — victimisation
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

Documentary evidence of the punitive treatment imposed immediately after the Complainant reported gender identity discrimination. Contents include: leave records documenting the doubling of unpaid leave; communications from management regarding schedule changes and leave adjustments; comparison of leave treatment before and after the discrimination complaint; emails evidencing sudden and unilateral changes to work arrangements; and management communications making accusations of 'noise,' 'undermining,' and 'creating complications.' These documents establish a direct causal link between the protected disclosure and the punitive response.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

ANNEXURE D

INSTITUTIONAL SILENCE — 30+ DAYS WITHOUT RESPONSE

Annexure Reference:	Annexure D
Title:	Institutional Silence — 30+ Days Without Response
Document Category:	Procedural Failure / Governance Failure
Pages (Original Bundle):	p. 187
Witnesses / Sources:	HR Business Partner(s); Union representative(s); Mapule Mashele; Bongani Luvuno
Statutory Basis:	LRA s186(2)(a) — unfair labour practice; King IV Principle 16 — stakeholder responsiveness; internal grievance policy
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

Evidence documenting the Respondent's failure to respond to formal grievances submitted in November 2025 for a period in excess of 30 days. Contents include: formal grievance submissions with date-stamped proof of delivery; follow-up communications requesting acknowledgment and response; evidence of the absence of any reply from HR, management, or the union within the required timeframe; and correspondence confirming that the matter was subsequently redirected back to the implicated department. This annexure establishes the total breakdown of the internal grievance mechanism and the Respondent's breach of procedural fairness obligations.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

ANNEXURE E

UNLAWFUL DEDUCTION EVIDENCE — >40% SALARY CUT

Annexure Reference:	Annexure E
Title:	Unlawful Deduction Evidence — >40% Salary Cut
Document Category:	BCEA Violation / Financial Harm
Pages (Original Bundle):	pp. 188–192
Witnesses / Sources:	Payroll / HR Remuneration Officer; Cheryl Dawn; Union representative; Mary-Ann Jones
Statutory Basis:	BCEA s34(2) — unlawful deduction; EEA s6(2) — failure to accommodate disability; PDA s1 — occupational detriment
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

Documentary evidence establishing the unlawful deduction of more than 40% of the Complainant's salary without prior consultation, written consent, or compliance with section 34(2) of the Basic Conditions of Employment Act. Contents include: payslips demonstrating the quantum of the deduction and its proportion relative to gross earnings; HR and payroll communications regarding the deduction; the team leader's unannounced forwarding of a partial policy snippet the morning after the deduction was imposed; the union's written confirmation that the deduction exceeded statutory limits and required consultation; the Complainant's requests to stagger the deduction and the Respondent's refusals; and communications documenting the derogatory comments made in response to the Complainant's expression of financial distress.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

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ANNEXURE F

MEDICAL EVIDENCE

Annexure Reference:	Annexure F
Title:	Medical Evidence
Document Category:	Disability Documentation / Psychiatric Harm
Pages (Original Bundle):	pp. 193–196
Witnesses / Sources:	Treating psychiatrist; Akeso Stepping Stone clinical team
Statutory Basis:	EEA s6(2) — failure to accommodate disability; Code of Good Practice on Disability in the Workplace; OHSA s8 — duty to provide safe working environment
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

Clinical and medical documentation establishing the Complainant's psychiatric disability and the causal relationship between the Respondent's conduct and the deterioration of his mental health. Contents include: medical certificates from the treating psychiatrist confirming diagnoses of severe depression and PTSD; the clinical support letter issued for submission to the employer; documentation of the admission to Akeso Stepping Stone and the circumstances of early discharge; records of the near-suicidal incident at the workplace triggered by the financial deduction; clinical documentation of the relapse caused by the Respondent's conduct; and the mental health impact statement prepared for use in proceedings.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: *Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.*

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ANNEXURE G

EXECUTIVE ESCALATION EMAILS

Annexure Reference:	Annexure G
Title:	Executive Escalation Emails
Document Category:	Protected Disclosure — Executive Level
Pages (Original Bundle):	pp. 197–199
Witnesses / Sources:	Executive Leadership (recipients of 4 December escalation)
Statutory Basis:	PDA s1 — protected disclosure to employer; PDA s3 — employer's obligation not to subject employee to occupational detriment
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

Documentary evidence of the Complainant's formal escalation of his protected disclosure and full evidence pack to executive leadership in early December 2025. Contents include: the escalation email to executive leadership containing the full protected disclosure; the supporting evidence pack attached to the escalation; requests for removal from the team leader's reporting line; requests for transfer to another department; requests for immediate protection and intervention; and evidence that executives received and were aware of the escalation.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

ANNEXURE H

EXECUTIVE DE-ESCALATION EMAILS

Annexure Reference:	Annexure H
Title:	Executive De-Escalation Emails
Document Category:	Breach of PDA Protection / Conflict of Interest
Pages (Original Bundle):	p. 200
Witnesses / Sources:	Executive Leadership; Bongani Luvuno (HR/Employee Relations)
Statutory Basis:	PDA s3 — prohibition of occupational detriment; PDA s4 — employer's obligations; King IV Principle 3 — ethical governance
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

Documentary evidence establishing that, rather than investigating and protecting the Complainant, executive leadership de-escalated the protected disclosure back to the very department implicated in the misconduct. Contents include: communications demonstrating the redirection of the protected disclosure to the implicated department; evidence that executives failed to acknowledge the escalation; documentation of the conflict of interest created by returning the matter to the perpetrators; and the Complainant's formal declaration of a deadlock upon discovering the de-escalation.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

ANNEXURE I

CCMA REFERRAL — CASE NO. WECT23564-25

Annexure Reference:	Annexure I
Title:	CCMA Referral — Case No. WECT23564-25
Document Category:	External Protected Disclosure / Formal Dispute
Pages (Original Bundle):	pp. 201–203
Witnesses / Sources:	CCMA (institutional record); Bongani Luvuno (HR/Employee Relations)
Statutory Basis:	PDA s9 — disclosure to external body; LRA s191 — referral of unfair dismissal dispute; LRA s186(1)(e) — constructive dismissal
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

The Complainant's formal referral of the dispute to the Commission for Conciliation, Mediation and Arbitration (CCMA), constituting a protected disclosure to an external body under the Protected Disclosures Act. Contents include: the completed CCMA referral form for Case No. WECT23564-25; supporting documents submitted with the referral; the CCMA Certificate of Non-Resolution where applicable; and correspondence between the Complainant and the CCMA regarding the proceedings.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

ANNEXURE J

PRIORITY 1 MATERIAL RISK REPORT

Annexure Reference:	Annexure J
Title:	Priority 1 Material Risk Report
Document Category:	Board-Level Governance Escalation
Pages (Original Bundle):	pp. 204–210
Witnesses / Sources:	Company Secretary; Lead Independent Director; Ethics Committee; Risk Committee
Statutory Basis:	King IV Principles 2, 3, 14, 16; JSE Listings Requirements; PDA s9; FSR Act governance obligations
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

The formal Priority 1 Material Risk Report submitted by the Complainant on 9 December 2025 to the Ethics Committee, Risk Committee, Lead Independent Director, and Company Secretary, marked Confidential and subject to Legal Privilege. The report details: governance failures at multiple organisational levels; discrimination and retaliation experienced by the Complainant; the de-escalation of the protected disclosure by executive leadership; institutional silence exceeding 30 days; the breakdown of HR and union structures; the financial and psychiatric harm caused to the Complainant; and the request for independent investigation and whistleblower protection. Submission proof is included.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

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ANNEXURE K

RETALIATORY AFFIDAVIT — 10 DECEMBER 2025

Annexure Reference:	Annexure K
Title:	Retaliatory Affidavit — 10 December 2025
Document Category:	Occupational Detriment / Abuse of Process
Pages (Original Bundle):	pp. 211–224
Witnesses / Sources:	Respondent's deponent (name per affidavit)
Statutory Basis:	PDA s1 — occupational detriment; LRA s5 — protection of rights; EEA s6(4) — victimisation; EEA s6(1) — gender identity discrimination (misgendering)
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

The Respondent's answering affidavit filed in opposition to the Complainant's CCMA condonation application, containing extensive attacks on the Complainant's character, credibility, and mental health status. This annexure includes: the full text of the retaliatory affidavit; extracted portions organised by category of attack; a forensic analysis of the attacks documenting ten categories of misconduct including: (1) direct personal attacks on character; (2) weaponisation of the Complainant's psychiatric disability; (3) false allegations of dishonesty; (4) claims of fabrication and misrepresentation; (5) accusations of abuse of process; (6) claims of no prospects of success; (7) allegations of procedural failure; (8) claims attributing fault to the Complainant; (9) allegations of holding the company hostage; and (10) claims of wasted resources. The affidavit also contains gender misrepresentation, referring to the Complainant as 'her', continuing the 'Wilma' pattern.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: *Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.*

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ANNEXURE L

BOARD NON-RESPONSE

Annexure Reference:	Annexure L
Title:	Board Non-Response
Document Category:	Governance Failure / Board Oversight Failure
Pages (Original Bundle):	p. 225
Witnesses / Sources:	Company Secretary; Lead Independent Director; Board members (recipients of P1 Report)
Statutory Basis:	King IV Principles 2, 3, 16; JSE Listings Requirements cl. 3.84; Companies Act s76 — duty of care
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

Documentary evidence of the Board's complete failure to acknowledge, investigate, or respond to the Priority 1 Material Risk Report submitted on 9 December 2025 and the Complainant's urgent follow-up communications requesting at minimum an acknowledgment. This annexure establishes that: the Board received formal notification of documented governance failures; no acknowledgment was issued; no investigation was initiated; no protective measures were implemented; and the Complainant was left unprotected, compelled to resign on 12 December 2025. The absence of response is itself evidence of the Board's failure to discharge its King IV governance obligations.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

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ANNEXURE M

CONSTRUCTIVE DISMISSAL LETTER

Annexure Reference:	Annexure M
Title:	Constructive Dismissal Letter
Document Category:	Resignation / Constructive Dismissal Record
Pages (Original Bundle):	pp. 225–226
Witnesses / Sources:	Complainant (deponent); HR Business Partner
Statutory Basis:	LRA s186(1)(e) — constructive dismissal; LRA s187(1)(h) — automatically unfair dismissal; PDA s3 — occupational detriment
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

The Complainant's formal resignation letter dated 12 December 2025, constituting the culminating act in the automatically unfair constructive dismissal. The letter sets out the reasons for resignation, including: sustained retaliation; governance failure; institutional victimisation; procedural abuse; financial harm; and mental health impact. Supporting notes contextualise the resignation within the timeline and establish that the decision was not voluntary but was forced upon the Complainant by the intolerability of the continued employment relationship.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

ANNEXURE N

URGENT UPDATE TO BOARD

Annexure Reference:	Annexure N
Title:	Urgent Update to Board
Document Category:	Final Escalation / Board Communication
Pages (Original Bundle):	pp. 227–228
Witnesses / Sources:	Board members (recipients); Company Secretary
Statutory Basis:	King IV Principle 16; PDA s4; LRA s186(1)(e)
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

The Complainant's final urgent communication to the Board following the filing of the retaliatory affidavit on 10 December 2025, requesting at minimum acknowledgment and intervention before the situation became irreversible. Contents include: the urgent update email to the Board; the timeline context explaining the sequence of events requiring immediate response; and evidence of the Board's continued silence and failure to act. This communication represents the Complainant's last good-faith attempt to resolve the matter through internal channels before resignation.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

ANNEXURE O

SENIOR MANAGEMENT WHITEWASH EVIDENCE

Annexure Reference:	Annexure O
Title:	Senior Management Whitewash Evidence
Document Category:	Procedural Obstruction / Sham Investigation
Pages (Original Bundle):	pp. 229–239
Witnesses / Sources:	Mapule Mashele; HR Business Partner; Bongani Luvuno
Statutory Basis:	LRA s186(2)(a) — unfair labour practice; EEA s6(4) — victimisation; internal grievance policy
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

Documentary evidence of Senior Manager Mapule Mashele's whitewashing of the Complainant's discrimination and victimisation complaints. Contents include: HR responses to formal grievances; communications establishing the superficial nature of the investigation into the 'Wilma' incident; the outcome dismissing the incident as a 'typo' without substantive investigation; evidence of the complaint being de-escalated back to the implicated department; communications demonstrating that HR accepted the whitewash outcome without independent review; and the failure to impose any consequences on the perpetrator. This annexure was previously described in earlier documents as 'HR Whitewash Evidence' and covers the same subject matter.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

ANNEXURE P

INSUBORDINATION — PRETEXTUAL DISCIPLINARY EVIDENCE

Annexure Reference:	Annexure P
Title:	Insubordination — Pretextual Disciplinary Evidence
Document Category:	Retaliation / Pretextual Conduct
Pages (Original Bundle):	pp. 240–246
Witnesses / Sources:	Mary-Ann Jones; Mapule Mashele; Union representative
Statutory Basis:	PDA s1 — occupational detriment; LRA s5; EEA s6(4) — victimisation
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

Documentary evidence relating to the Respondent's deployment of insubordination allegations as a pretext for further retaliatory action against the Complainant. Contents include: communications in which management accused the Complainant of insubordination, 'noise,' 'undermining,' and 'creating complications'; evidence that these accusations arose directly after the Complainant raised protected disclosures and sought clarity on policy changes; and documentation establishing that the insubordination framing was inconsistent with the Complainant's actual conduct, which at all times sought to follow established procedure. This annexure was referenced in earlier documents as 'Union Non-Action Evidence' but the original bundle content covers pretextual disciplinary conduct.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

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ANNEXURE Q

REFUSAL TO PROVIDE SAFEGUARDS

Annexure Reference:	Annexure Q
Title:	Refusal to Provide Safeguards
Document Category:	Procedural Obstruction / Bad Faith
Pages (Original Bundle):	pp. 247–254
Witnesses / Sources:	Bongani Luvuno (HR/Employee Relations); Mapule Mashele
Statutory Basis:	LRA Schedule 8 — Code of Good Practice: Dismissal; King IV Principle 3; PDA s3
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

Documentary evidence of the Respondent's refusal to provide the Complainant with basic procedural safeguards when a meeting was proposed following the CCMA referral. Contents include: the Complainant's requests for a meeting agenda and permission to audio-record the proceedings; the Respondent's refusals to provide these safeguards; communications with HR representative Bongani Luvuno; the Complainant's formal declaration of a procedural deadlock; and evidence that the refusal made meaningful internal resolution impossible and constituted bad faith engagement. The refusal to permit recording is particularly significant given the pattern of conduct and the Complainant's documented vulnerability.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

ANNEXURE R

PATTERN OF RETALIATION EVIDENCE

Annexure Reference:	Annexure R
Title:	Pattern of Retaliation Evidence
Document Category:	Systematic Conduct Analysis
Pages (Original Bundle):	pp. 255–256
Witnesses / Sources:	All witnesses identified in Witness List (Section 8.2)
Statutory Basis:	PDA s1 — continuous occupational detriment; LRA s187(1)(h) — automatically unfair dismissal; EEA s6(4) — victimisation
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

A structured analysis of the systematic pattern of retaliatory conduct directed at the Complainant across the period July to December 2025. Contents include: a timeline mapping each retaliatory act against the triggering protected disclosure; screenshots and communications documenting the pattern; a behavioural pattern analysis demonstrating escalation over time; evidence that retaliatory acts consistently followed within days of each protected disclosure or grievance submission; and corroborating documentation from multiple sources establishing that the pattern was not coincidental but systematic.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

ANNEXURE S

FINANCIAL HARM EVIDENCE

Annexure Reference:	Annexure S
Title:	Financial Harm Evidence
Document Category:	Quantification of Loss / Financial Destitution
Pages (Original Bundle):	p. 257
Witnesses / Sources:	Payroll Officer; Complainant (deponent); financial records
Statutory Basis:	BCEA s34(2) — unlawful deduction; LRA s194 — compensation for unfair dismissal; EEA s50 — compensation
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

Documentary evidence quantifying the financial harm caused to the Complainant by the Respondent's unlawful conduct. Contents include: payslips demonstrating the quantum of the unlawful deduction and its impact on net income; documentation of the high-interest loans taken to meet basic living expenses following the deduction; evidence of the partner's bank loan obtained to stabilise the financial situation; records of escalating debt obligations; evidence of inability to afford prescribed psychiatric medication; and documentation establishing that the Complainant's financial destitution was a direct and proximate result of the Respondent's unlawful deduction and refusal to stagger. The financial harm is ongoing at the date of submission.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

ANNEXURE T

REPUTATIONAL HARM EVIDENCE

Annexure Reference:	Annexure T
Title:	Reputational Harm Evidence
Document Category:	Dignity Harm / Reputational Damage
Pages (Original Bundle):	p. 258
Witnesses / Sources:	Complainant (deponent); colleagues; treating psychiatrist
Statutory Basis:	PDA s1 — occupational detriment; Constitution s10 — right to dignity; EEA s6(3) — harassment
Status:	Commissioned and submitted 23 December 2025

DESCRIPTION OF DOCUMENTS

Documentary evidence of the reputational harm caused to the Complainant by the Respondent's conduct, both within the organisation and in formal proceedings. Contents include: internal statements and communications containing character attacks; extracts from the retaliatory affidavit (cross-referenced with Annexure K) demonstrating the use of formal proceedings to damage the Complainant's reputation; impact notes documenting the effect of the reputational harm on the Complainant's professional standing and psychological state; and evidence that the reputational harm was a calculated component of the Respondent's retaliatory strategy rather than incidental to the proceedings.

EVIDENTIARY VALUE: HIGH — contemporaneous documentation supporting this bundle.

CROSS-REFERENCE: Refer to Executive Summary, Section 2 (Affidavit), and Sections 3–6 of the Evidence Bundle for contextual analysis.

